

HCS HBs 2637 & 3155 -- TERMS OF SENTENCING (Black)

COMMITTEE OF ORIGIN: Standing Committee on Judiciary

The bill repeals a provision that does not consider an offender's first incarceration in a Department of Corrections long-term substance abuse program or 120-day program as a previous prison commitment for the purpose of determining a minimum prison term. The bill repeals provisions related to conditional release.

The bill adds to the definition of "dangerous felony": abuse through forced labor; labor and sex trafficking; sex trafficking of a child; and a third violation of failure to register as a sex offender. The bill removes the requirement that the victim of statutory rape in the first degree or statutory sodomy in the first degree be under 12 years old at the time of the commission of the offense for the offense to be a dangerous felony, and it clarifies that an offender convicted of a dangerous felony must serve 85% of the imposed sentence prior to being eligible for parole. The bill increases the minimum terms of imprisonment for rape in the first degree and statutory rape in the first degree.

The bill amends provisions related to minimum prison terms as follows:

- (1) For a class A felony, an offender must serve 70%;
- (2) For a class B felony, an offender must serve 50%;
- (3) For a class C felony, an offender must serve 40%; and
- (4) For a class D or E felony, an offender must serve 25%.

When a person is sentenced to an authorized term of imprisonment for a higher class than the offense for which the person was found guilty, the person will also be sentenced to the parole eligibility percentage of the higher class. The bill provides calculations for when consecutive or concurrent sentences are imposed by the court.

The bill modifies provisions related to credit for time served, including requiring the court to, when pronouncing sentence or executing a suspended sentence or suspending the imposition of a sentence, record the number of days the person spent in prison, jail, or custody due to the offense after the offense occurred and before the pronouncement of the sentence or the suspension of imposition of the sentence. The jail time credit calculation

will be pronounced at the time of the judgment, execution of a suspended sentence, or the suspension of imposition of sentence. Upon motion by the defendant, the court can also award jail time credit for any person who was held in a juvenile detention facility for an offense for which the person was subsequently certified to stand trial as an adult.

Currently, a sentencing court can, upon petition, reduce a term of sentence or probation or conditional release if the person is not a prior offender, a persistent offender, or an unclassified offender as defined in the section related to minimum terms of imprisonment. This bill repeals that authorization.